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Case Number: 24STCV10660 Hearing Date: August 24, 2026 Dept: 514

Ramierz v. Yeraz Coffee, Inc.

24STCV10660

Motion to Compel Plaintiffs Ana Lopez and Enma

Elizabeth Ramirez to Submit to Mental (Neuropsychological) Examination

Tentative Ruling

The motion is granted, on the conditions set forth below.

Background

This case arises out of injuries allegedly resulting from a fire caused by the misuse of a coffee roaster.

On April 29, 2024, Emma Elizabeth Ramirez and Ana Lopez (collectively "Plaintiffs") filed the complaint in this action against Yeraz Coffee, Inc. ("Yeraz"); Yeraz Coffee, LLC; Honey Management Group, Inc. ("HMG" or "Defendant"); Avik Sarkisharatounian ("Sarkisharatounian"); AMD Partners, LLC ("AMD"); and Does 1 through 25, asserting causes of action for (1) premises liability, (2) negligence, and (3) products liability.

On June 13, 2024, Defendant AMD filed an answer to the complaint. On the same day, AMD filed a cross-complaint against Yeraz and Roes 1 through 20 for (1) contribution, (2) equitable indemnity, (3) implied indemnity, and (4) express indemnity.

On August 1, 2024, Yeraz and Sarkisharatounian filed an answer to the complaint. On the same day, Yeraz filed a cross-complaint against HMG and Zoes 1 through 50 for (1) indemnification, (2) contribution, and (3) declaratory relief.

On October 1, 2024, HMG filed an answer to the complaint.

On the same day, HMG filed a cross-complaint against Yeraz, Yeraz Coffee, LLC, Sarkisharatounian, and Roes 1 through 25 for (1) express contractual indemnity, (2) equitable indemnity, (3) equitable contribution, (4) equitable apportionment, and (5) declaratory relief.

On July 22, 2026,

Defendant HMG filed this motion to compel each of the two Plaintiffs to submit to neuropsychological examination. Plaintiffs filed an opposition on August 7, and Defendant filed a reply on August 17.

Trial is set for
October 27, 2026.

Legal Standard

Code of

Civil Procedure section 2032.220 provides that a defendant in a personal injury action may demand one physical examination of the plaintiff without seeking leave of the court.

If a

defendant seeks a further physical examination of plaintiff, or a mental examination, the defendant must first file a motion and “obtain leave of court.” (Code Civ. Proc., § 2032.310, subd. (a).) Such a motion must “specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination.” (Id., subd. (b).)

The

court may grant a motion for a mental examination of a plaintiff “only for good cause shown.” (Code Civ. Proc., § 2032.320, subd. (a).) The examination will be limited to whatever condition is “in controversy” in the action.¿ (Ibid.) A showing of good cause generally requires “that the party produce specific facts

justifying discovery and that the inquiry be relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence.” (Vinson v. Super. Ct. (1987) 43 Cal.3d 833, 840.) By alleging a causal link between the emotional distress and the defendant's conduct, a plaintiff “implicitly claims it was not caused by a preexisting mental condition, thereby raising the question of alternative sources for the distress.” (Ibid.)

A

mental examination is appropriate only if the plaintiff alleges continuing emotional distress. (Doyle v. Super. Ct. (1996) 50 Cal.App.4th 1878, 1886-1887.) “While a plaintiff may place his mental state in controversy by a general allegation of severe emotional distress, the opposing party may not require him to undergo psychiatric testing solely on the basis of speculation that something of interest may surface.” (Vinson, *supra*, 43 Cal.3d at p. 840.)

“An

order granting a physical or mental examination shall specify the person or persons who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination.” (Code Civ. Proc., § 2032.320, subd. (d).) “The court is to describe in detail who will conduct the examination, where and when it will be conducted, the conditions, scope and nature of the examination, and the diagnostic tests and procedures to be employed. The way to describe these ‘diagnostic tests and procedures’—fully and in detail—is to list them by name.” (Carpenter v. Super. Ct. (2006) 141 Cal.App.4th 249, 260.)

The

moving party must support the motion with a meet and confer declaration. (Code Civ. Proc., § 2032.310, subd. (b).) A meet and confer declaration must state facts “showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Id., § 2016.040.)

A court

shall not (except under “exceptional circumstances”) order a mental examination if the plaintiff stipulates (1) “that no claim is being made for mental and emotional distress over and above that usually associated with the physical injuries claimed” and (2) “that no expert testimony regarding this usual mental

and emotional distress will be presented at trial in support of the claim for damages.” (Code Civ. Proc., § 2032.320, subds. (b) & (c).)

Discussion

Plaintiffs concede that there is good cause for the neuropsychological examinations requested by Plaintiffs.

The only issues raised in Plaintiffs’ opposition relate to the conditions of the examination, and specifically: (1) the production of raw data to Plaintiff’s counsel, (2) the presence of a third-party observer, and (3) audio recording of the examination.

Raw Test Data

Plaintiffs’ counsel ask for access to the raw data from the testing. A plaintiff submitting to a mental examination has the right to demand that the defendant deliver to the plaintiff a “copy of a detailed written report setting out the history, examinations, findings, including the results of all tests made, diagnoses, prognoses, and conclusions of the examination.” (Code Civ. Proc., § 2032.610, subd. (a)(1).) Defendant opposes the request and argues that the raw testing data can be provided only to an expert retained by Plaintiffs.

The Court of Appeal considered this very issue in *Randy’s Trucking v. Superior Court* (2023) 91 Cal.App.5th 818. In that case, the superior court ordered that the raw data be provided to plaintiff’s counsel, subject to a protective order that prohibited any use or disclosure of the materials for any purpose other than in connection with the litigation.

(Id. at 828.) On writ review, the defendants made arguments similar to the ones that Defendants make here, including (among others) : (1) that disclosure is not required by section 2032.610; (2) that disclosure would violate the ethical and professional obligations of the testing expert; and (3) that disclosure to attorneys, rather than other health care professionals, would lead to coaching of future clients that would undermine the value and effectiveness of the testing materials. (Id. at pp. 834, 837-38.)

The Court of Appeal rejected those arguments, holding that the superior court did not abuse its discretion in compelling the disclosure pursuant to a protective order. (Id. at 842). As the Court of Appeal explained, a plaintiff has a

“right

to take discovery and cross-examine defendants' expert witnesses, which includes being able to examine the expert on the matter upon which the expert's opinion is based and the reasons for that opinion. (Evid. Code, § 721, subd. (a).) Without raw data and audio recording, plaintiffs cannot effectively scrutinize the way the data was collected, determine if there are discrepancies, and cross-examine the neuropsychologist on the basis and reasons for the neuropsychologist's opinion.”

(Id., at p. 838.)

The court also rejected the argument that the disclosure should be made only to the plaintiff's expert, explaining (among other things) that a party “should not be forced to retain an expert to gain access to these materials.” (Ibid.)

After carefully considering the evidence and arguments presented by both sides, the Court GRANTS Plaintiffs' request that the order for the examination include a provision requiring disclosure of the raw data and testing materials directly to Plaintiffs' counsel, subject to a protective order, for two separate and independent reasons.

First, given the overall purposes of the Civil Discovery Act, the Court interprets the phrase “results of all tests made” in section 2032.610 broadly, to include raw testing data.

That interpretation promotes the well-established policy in favor of broad and mutual pre-trial disclosure that runs throughout the Civil Discovery Act and the case law.

Second, even if the disclosure is not required by section 2032.610, the decision whether to order disclosure of raw test data falls within the broad discretion of the superior court. (Randy's Trucking, *supra*, 91 Cal.App.5th at p. 837; Carpenter, *supra*, 141 Cal.App.4th at pp. 271-272.) Here, the Court has weighed the competing interests and finds that the appropriate balance is struck by requiring disclosure subject to a protective order, just as Superior Court Judge Barmann did in the Randy's Trucking case. This will allow Plaintiffs access to the material needed to cross-examine the Defendant's expert and prepare for trial, and it will minimize the risk of improper or undue distribution of the data to third parties.

Following the lead of Judge Barmann, the Court will order the following protective order in this matter:

"Plaintiff's counsel, defense

counsel and all experts, consultants and employees of the respective firms shall maintain the security of all raw data, test materials and other medically private information obtained during the examination. However, such raw data, test materials and other medically private information may be disclosed to plaintiff's counsel, defense counsel and all experts, consultants and employees of the respective firms for use in this case. Such materials and data may also be shown to the trier of fact at the time of trial, or such other time as may be necessary for the adjudication of the above-captioned matter. These materials may be used for no other purpose, may not be disseminated to any other party and the parties shall take all reasonable steps to maintain the confidentiality of the above-identified materials."

Counsel may seek to add to or modify these provisions (by a court order entered following a stipulation or motion), but the materials must be disclosed to Plaintiff's counsel, and, pending further order of the Court, the protective order set forth above will apply.

Audio recording

Under the plain language of Code of Civil Procedure section 2032.530, Plaintiffs must be permitted to record the entire examination. Any concern that Defendant may have about the wisdom of this requirement must be addressed to the Legislature.

Third Party Observer

Plaintiffs' request for a third-party observer is denied. Under Code of Civil Procedure section 2032.510, a plaintiff may be accompanied by a third party for a physical examination. That section does not apply to mental examinations. For mental examinations, the Legislature has provided that the examination may be recorded, but the Legislature did not provide for a third-party observer to attend.

Conclusion

The Court GRANTS the motion of Defendant Honey Management Group,

Inc. to compel

Plaintiffs Enma Elizabeth Ramirez and Ana Lopez to submit to a neuropsychological examinations.

Plaintiffs are ORDERED to appear for and submit to mental examinations on a

mutually agreeable date between the parties with J. Vincent Filoteo, Ph.D., at Regus Offices located at 333 City Blvd West, 17th

Floor, Orange, CA 92868.

The scope of the examination will be

limited to the follow tests: Test

of Memory Malingering; Dot Counting Test; b Test; Rey Fifteen-Item Test (FIT);

Wide Range Achievement Test-5 (WRAT-5) Math Computation; Bateria

Neuropsicológica en Español (BNE) Verbal Fluency, List Learning, Stroop;

Wechsler Adult Intelligence Scale-IV, Mexican Battery (WAIS-IV-M) Similarities,

Digit Span, Matrices, Vocabulary, Arithmetic, Symbol Search, Coding,

Information, Visual; Wisconsin Card Sorting Test-64 (WCST-64); Color Trails,

Trials 1 and 2 or Trails A and B; Semantic Fluency; Brief Visuospatial Memory

Test-Revised (BVM-T-R); Beck Depression Scale- Spanish (BDS-S); Beck Anxiety

Inventory- Spanish (BAI-S); PTSD Checklist for DSM-5-Spanish (PCL-5-S); and

Minnesota Multiphasic Personality Inventory-3 Spanish (MMPI-3-S).

Plaintiffs shall have the right to record the

entire examination by audio technology.

Within 30 days

of the examination, Defendant will provide Plaintiffs' counsel a copy of a detailed report setting out the history, examinations, findings, including the results of all tests made, diagnoses, prognoses, and conclusions of the examination. This will include all raw data and testing materials.

Plaintiffs' counsel, defense

counsel and all experts, consultants and employees of the respective firms

shall maintain the security of all raw data, test materials and other medically

private information obtained during the examination. However, such raw data,

test materials and other medically private information may be disclosed to Plaintiffs'

counsel, defense counsel and all experts, consultants and employees of the

respective firms for use in this case. Such materials and data may also be

shown to the trier of fact at the time of trial, or such other time as may be

necessary for the adjudication of the above-captioned matter. These materials may be used for no other purpose, may not be disseminated to any other party and the parties shall take all reasonable steps to maintain the confidentiality of the above-identified materials.

Finally, the Court notes that Defendant filed one motion for what should have been two motions. Combining discovery motions allows the moving party to avoid paying the requisite filing fees. Filing fees are jurisdictional and it is mandatory for court clerks to demand and receive them. (See *Duran v. St. Luke's Hospital* (2003) 114 Cal.App.4th 457, 460.) Thus, Defendant is ordered to pay the additional filing fee to the Clerk of the Court within 15 days and to file proof of payment.

Moving party is ordered to give notice.